IN THE NATIONAL COMPANY LAW TRIBUNAL
NEW DELHI BENCH (COURT – II)

Item No. 227
CP CA (CAA) 27/ND/2025

IN THE MATTER OF:
Mann Feeds Private Limited ... **Applicant/Petitioner**

Under Section: 230 & 232 R/w Sec 52, 55 and 66

Order delivered on 26.08.2025

CORAM:
SH. ASHOK KUMAR BHARDWAJ
HON'BLE MEMBER (J)

MS. REENA SINHA PURI
HON'BLE MEMBER (T)

PRESENT:
For the Applicant : Adv. Kartikeya Goel
For the Respondent :
For the IT Dept : Mr. Gaurav Gupta SSC, Mr. Shivendra Singh JSC, Mr. Yojik Prateek JSC, Adv
. Prassant Kumar Sharma

Hearing Through: VC and Physical (Hybrid) Mode

ORDER

Ld. Counsel for the Income Tax Department could produce a letter dated 25.08.2025 written by Dy. Commissioner of Income Tax to the Registrar of National Company Law Tribunal. The relevant excerpt of letter reads thus:-

2. In this regard, it is submitted that the abovementioned petition and order of Hon'ble NCLT was received in this office on 31.07.2025 through email from the o/o PCIT(Central)-2, Delhi for NOC u/s 230 of Companies Act, 2013 for demerger of Mann Feeds Private Limited (Demerged Company) PAN: AAACM0132A and Legacy Foods Private Limited (Resulting Company) PAN: AAACL9887F.

3. The assessee companies, M/s Mann Feeds Private Limited (Applicant/ Demerged Company) and M/s Legacy Foods Pvt Ltd (Non-Applicant/ Resulting Company) have filed a petition with Hon'ble NCLT, New Delhi vide CP(CAA) 27/ND of 2025 connected with CA(CAA) 04/ND of 2025. The scheme of Arrangement provides for the following: -

(i) Demerger of 'Investment Business' of Mann Feeds Pvt Ltd into Legacy Foods Pvt Ltd; and

(ii) Various other matters incidental, consequential or otherwise integrally connected with the aforesaid Demerger, if any.

4. A search & seizure operation u/s 132 of the Income Tax Act, 1961 was conducted on 18.02.2025 in the case of Mann Group, other companies/ entities and other related parties. The above-mentioned assessee companies i.e. M/s Mann Feeds Pvt Ltd and M/s Legacy Foods Private Limited were also covered in search & seizure operation. During search proceedings, various documents were found and seized in paper form along with the digital data.

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5. After receiving the above petition, the petitioner was provided an opportunity in the interest of natural justice to explain the scheme of arrangement and submit supporting documents. The petitioner appeared before the undersigned on 20.08.2025. During the hearing, the petitioner submitted various documents viz. Provisional Balance Sheet, Valuation Report etc.

6. In the light of the above facts, this office needs a time of atleast three months to examine and verify the details submitted by the petitioner and documents/data seized during search in respect of above-mentioned companies. Therefore, you are kindly requested to adjourn the matter for a period of 03 months.

As can be seen from the aforementioned, the scheme sought to be approved by this Tribunal is that of demerger of "Investment Business" of Mann Feeds Pvt Ltd into Legacy Foods Pvt Ltd. It is also seen from the letter that a search and seizure operation under Section 132 of the Income Tax Act, 1961 was conducted on 18.02.2025 in the case of Mann Group, other companies/entities and other related parties. In the wake of the factual matrix in the matter, the Income Tax Department has sought three months' time to file its report. Nevertheless, two months' time is granted to Income Tax Department to file its report.

List on **09.12.2025.**

sd/-

(REENA SINHA PURI)
MEMBER (T)

sd/-

(ASHOK KUMAR BHARDWAJ)
MEMBER (J)

Ashima/Hetash